ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	63rd Commission Meeting
DATE:	11 January 2022
TIME:	2:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA	DECISIONS & RESPONSIBLE
1.	Proposal to use excess JSP fund allocated to conduct sessions for Justice Institutions to conduct thematic sessions for Dzongkhag LG engineers-ED	Under the Justice Sector Programme 2018-2023 (JSP), one of the activities is to conduct Ethics and Integrity Management Trainings to Justice Institutions. The target is to give session to 600 participants. Towards this, in last Financial Year (FY), thematic sessions for RSTA and RBP was conducted, covering a total of 407 officials. In the current FY, sessions for officials from Department of Revenue & Customs and Department of Immigration (Samtse, Phuntsholing & Gelephu) covering 151 participants have been conducted. Since most of the session were done online, against the total allocated budget of Nu. 1.5mn, only Nu. 0.311mn has been utilized. From January 27-28, a session to 47 officials of Office of Attorney General will be conducted thus, bringing the total participants to 605. With this, the targeted audience under the JSP will be met. Since the session with OAG can be done within a budget of Nu. 0.472mn, the remaining budget is proposed to conduct thematic sessions for LG engineers of 20 Dzongkhags. In this regard, the Commission approved the proposal. However, given the need to provide such sessions to the LG officials vis-a-vis the limited budget, the Commission directed the department to: • Consult with Department of Local Government on their plan to give induction to the newly elected LG officials. • Explore the possibility to include the Gups and Mangmis of at least four Dzongkhags (Wangdue Phodrang, Mongar, Samtsi and Trasigang) during the thematic sessions for engineers. • Check with Office of Attorney General on their plan to give sessions in Dzongkhags.

2.	Seek approval to appoint AD focal as IVS focal- FDD & ADMD	As the scope of the Integrity Vetting System (IVS) is mainly to assist the agency in making rational decisions in recruiting and safeguarding the agency by ensuring that they only employ individuals with high standards of integrity, the major work of an IVS focal is related to ensuring compliance of Human Resource (HR) processes. Thus, the proposal from FDD is to appoint the Asset Declaration Administrator (ADA) as the IVS focal since most are HR Officer (HRO). Not only that, as both the system is coming from the ACC, it will be more convenient for correspondence as well as future training programs. Towards this, ADMD shared that not all ADAs are HRO in the first place. Secondly, the department is already facing challenge of ADAs not being keen on administrating the system as it is an added responsibility to them beside their primary job. While the department is working on providing incentives to ADAs, giving them additional work as IVS focal may be demotivating. In this regard, the Commission noted that appointing ADAs as IVS focal may not be feasible. Moreover, there needs to be clear Terms of Reference (TOR) of an IVS focal person. Thus, Commission directed: • FDD to present the TOR of an IVS focal in next Commission Meeting. • FDD to consult with LD on the need to have Rules and Regulation for IVS in addition to the Guideline. As for the focal person, during the sensitization of the IVS, it should be up to the agencies to decide on who to appoint as the focal person. However, since both ADS and IVS are coming from the ACC, both FDD and ADMD should consult and work together to optimize the platforms in terms of sensitization and giving training on the systems in future.
3.	Present AD Closure Report for year 2020-2021-ADMD	The Division presented the compliance report for year 2020 and the status of payment of penalty. The overall compliance rate for the year stands at 99.5%. Other issues highlighted by the Division are as follows: • Bringing Zhung Dratshang on board: Towards this, the Commission directed the Division to write to Letsho Lopen quoting earlier correspondence as well as the importance of filling Asset Declaration. To start off, the agency to handle themselves like

		in Schedule II and submit AD report at the end. • Sharing existing Database of AD system with iTechnologies for data migration: In order not to over burden the new system, the Commission directed to migrate data for last 1-2 years and rest to be kept in old system. • Integration of AD System with ZESt as part of Integrated Citizen Services Project: The Commission supported the integration and noted that it will only be helpful to increase the compliance of AD.
4.	Update on member composition of Committee-PPS	The PPS presented the member composition of Committees in the ACC as directed by the Commission to review it annually. Towards this, following changes were noted: 1. *Complaints Evaluation Committee* • Replace Leki Dendup by attendance of one of the Chiefs of DoI • Include Regional Office Head concerned as a member 2. *Investigation Review Committee* • Include Regional Head Concerned as a member • Regional Head concerned to act as member secretary on cases related to their region 3. *Human Resource Committee* • Include Heads of three Regional Offices alternatively for the period of four months. 4. *Screening Committee* • Include Regional Head as a member 5. *Prevention Advisory Committee* • Replace Leki Dendup by attendance of one of the Chief of DoI • Include Head of DARe as a member • Include Regional Head Concerned as a member if the proposal comes from the Regional Office 6. *Tender Committee* • Kinley Passang to replace Rinchen Namagy as a member • Include Finance Officer as one of the members 7. *Project Steering Committee for the Construction of the ACC Office Building in Phuentsholing* • Include Finance Officer as the Member Secretary

		8. Management Committee for Staff Welfare Scheme • Sampa Dendup to replace Karma Wangmo as Executive Secretary The aforementioned changes have been approved by the Commission in order to ensure the functioning of the committees. However, given the recent development as per the proposed structural changes, the Commission has directed to revisit the Committee and its member composition once the revisited structure is implemented.
5.	Follow up on the Resolution of 28th Session of National Council-PPS	The PPS presented the resolution from the 28th Session of the National Council on ACC's Annual Report 2020-2021 *(attached)*. Towards this, the Commission made the following decisions: • The Legal Division to present to Commission regarding the update on development of model code of conduct by 1st week of Feb 2022. • DARe to consult with LD and DoI on sources payment.
6.	Present project proposal for submission to UNODC- PPS	The PPS presented a project proposal of USD 1 million for Technical Assistance to enhance investigation & prevention capacity. Towards this, the Commission gave the following comments: • To put a timeframe of 3-5 years on the project and submit to GNHC. • Check and remove the activities that are already budgeted in the 12th FYP. • Include procurement of equipment/license as a mean to adapt to the rapid technological advancement. • Revise the proposed activity under the objective 'Marketing of anti-corruption agenda enhanced' to an activity which encompass innovative prevention and education programmes that engender sustainability of integrity measures.
7.	Others: • Change in the location of Samdrup Jongkhar ACC Office • Jurisdiction and workload for Regional Offices	In light of the pandemic and its associated protocol, the Commission decided to temporarily change the location of the ACC office from Samdrup Jongkhar to Trashigang. With establishment of the three ACC offices in Bumthang, Phuentsholing and Trashigang along with the head office at Thimphu, the Commission drew the jurisdiction for ease of functioning *(attached)*. Towards this, Departments/Divisions/Services were

		directed to make list of tasks that can be assigned to the offices based on their jurisdictions.
	• Review of Gift Rules 2017	The Commission directed LD to provide update on the review of Gift Rules 2017.
	• Develop the outline for Annual Report	The Commission directed PPS to develop the outline for preparation of reports (Annual Report, quarterly report, State of the National Report).

Commissioner **Commissioner** **Chairperson**